

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 7, 2026
8:30 a.m./1:30 p.m.

15. AIMEE ELSE V. DANIEL ELSE

PFL20190360

Petitioner filed a Request for Order (RFO) on February 3, 2026, requesting a modification of visitation orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on March 19, 2026 and a review hearing set for May 7, 2026. Proof of Service shows the Department of Child Support Services (DCSS) was personally served on February 9, 2026. Respondent was served by certified mail, with a return receipt showing Respondent signed for the mail on February 13, 2026.

Petitioner is seeking orders that the minors not have parenting time with Respondent until the issues of the sanitary conditions in the home have been resolved. Petitioner is seeking proof of a clean and safe environment for the minors prior to their travel to Arkansas.

Only Petitioner appeared for CCRC. As such a single parent report was filed with the court on March 19, 2026. Copies were mailed to the parties on March 25th.

Respondent has not filed a Responsive Declaration to Request for Order, therefore, the court deems his failure to do so as an admission that Petitioner's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C).

The court grants Petitioner's request. The minors are not to travel to Arkansas for Respondent's parenting time until Respondent provides Petitioner with proof that the home is in a clean and sanitary condition. The prior orders regarding proof of fumigation remain in full force and effect.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #15: THE COURT GRANTS PETITIONER'S REQUEST. THE MINORS ARE NOT TO TRAVEL TO ARKANSAS FOR RESPONDENT'S PARENTING TIME UNTIL RESPONDENT PROVIDES PETITIONER WITH PROOF THAT THE HOME IS IN A CLEAN AND SANITARY CONDITION. THE PRIOR ORDERS REGARDING PROOF OF FUMIGATION REMAIN IN FULL FORCE AND EFFECT.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND

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ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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16. RYAN HAYNES V. SONYA LOSSIUS

PFL20210153

Respondent filed a Request for Order (RFO) on March 26, 2026, seeking modification of child custody and parenting plan orders. The parties were not referred to Child Custody Recommending Counseling (CCRC) as they had participated in CCRC within the prior six months. Proof of Service shows Petitioner was served by mail and electronically on March 26, 2026.

On April 14, 2026, the court in Department 8 referred the parties to CCRC with an appointment on April 27, 2026. The court ordered the CCRC report to be prepared on an expedited basis. However, a further review hearing was set in the event the report was not able to be prepared in a timely manner.

The court finds that the CCRC report was not able to be prepared in time for the hearing. As such, the court finds good cause to continue the review hearing to June 18, 2026 at 1:30 PM in Department 5. Any supplemental declarations are due at least 10 days prior to the hearing.

TENTATIVE RULING #16: THE COURT FINDS GOOD CAUSE TO CONTINUE THE REVIEW HEARING TO JUNE 18, 2026 AT 1:30 PM IN DEPARTMENT 5. ANY SUPPLEMENTAL DECLARATIONS ARE DUE AT LEAST 10 DAYS PRIOR TO THE HEARING.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.